

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 21, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV455224	Asfar Longi v. Adeel Siddiqui et al.	Motion to be relieved as counsel for plaintiff: <u>parties to appear.</u>

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Calendar Line 1

Case Name: Jose Lopez Mendez v. Heriberto Mote Ponce

Case No.: 22CV396049

This is an action brought by self-represented plaintiff Jose Lopez Mendez (Mendez) against defendant Heriberto Mote Ponce (Ponce), arising from an alleged motor vehicle accident that occurred on October 20, 2020, in the parking lot of a Bank of America located at 2300 Alum Rock Avenue in San Jose.

The original and still operative complaint, a form complaint, alleges three causes of action: (1) motor vehicle negligence; (2) general negligence; and (3) “Intentional Tort.” (The third cause of action is a category of cause of action, not a cause of action in itself.) The only intentional conduct alleged in the third cause of action (apart from the allegedly negligent motor vehicle accident) is that Ponce “gave false information to Plaintiff, and failed to complete the required report, which caused Plaintiff further damage in having to locate the Defendant.” There are no exhibits attached to the complaint.

Ponce previously brought a motion to set aside default and to dismiss the complaint. The court (Judge Chung) granted the motion to set aside default and denied the motion to dismiss in September 2025. The court directed Ponce to file a response to the complaint.

Now at issue is Ponce’s demurrer to the complaint, which Mendez opposes.

LEGAL STANDARDS—DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Allegations are not accepted as true on demurrer if they contradict or are inconsistent with facts judicially noticed. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1474 [rejecting allegation contradicted by judicially noticed facts].) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence in ruling on a demurrer. The court has considered the declaration from Ponce’s counsel David Hirshik only to the extent it authenticates documents submitted for judicial notice with the demurrer. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.) The court has not considered the second request for judicial notice submitted with Ponce’s reply.

DISCUSSION